

ANONYMUS.

If a writ of error in ejectment, &c. abates by the act of God, a second writ will be a supersedeas. Otherwise where it abates by the act of the party.

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In a writ of error to reverse a fine, the proclamations were pleaded in the same fine, and five years quiet possession, and this in the bar of a writ of error.

The Court inclined, that the error being in the fine, five years possession could not be pleaded. Sed adjournatur. Mo. Rep. 8. So adjudg'd Raym. 462. 2 Jones 181, *Cockman versus Farrer*.

[354] TERMINO PASCHÆ, ANNO 33 CAR. II. IN BANCO REGIS.

Note, This term Sir Francis Pemberton was made Lord Chief Justice of the King's Bench in the room of Sir William Scroggs, who was displaced.

PAGE *versus* DENTON.

1 Salk. 312.

Hill. 32 & 33 Car. 2, Rot. 45. In debt upon a bond against an executor, who pleads that the testator was indebted to him by an obligation, the condition whereof was to pay rent; and that at the time of his decease there was 300l. due for rent, and that he had not more than 60l. assets to pay it, &c.

The plaintiff replied, that there was but 30l. due for rent at the time of the testator's death.

Which the Court held to be a good replication, altho' the penalty of the bond was forfeited at the time of the testator's death. For if a bond due to a stranger be forfeited, and this be pleaded by an executor, and that he hath not assets ultra, 'tis a good replication to say, that the obligee would have taken part of his money in full, and it shall be a bar for no more; and here the defendant ought to take but his due debt.

And the Court said, that if men would plead their case specially, it would save many a suit in Chancery.

FITZHARRIS'S CASE.

2 Show. 163. *Vide* State Trials.

Edward Fitzharris was indicted of high treason; upon which being arraigned, and demanded to plead, he delivered in a paper containing a plea to the jurisdiction of the Court; which could not be received, (as the Court said) not being under counsel's hand. Whereupon he prayed to have counsel assigned, and named divers, whereof the Court assigned four. And he was taken from the Bar, three or four days being given him to advise with his counsel, to prepare his plea as they would stand by him.

The counsel prayed, that they might have a copy of the indictment.

But the Court denied it and said, that it was not permitted in treason, or any other capital crimes.

[355] But Justice Dolben said, that sometimes it had been allowed to take notes out of the indictment. *Vid.* Mirror 304. Abusion est que justices ne monstre l'indictment a les indietes s'ils demandront. Sect. 115.

And note, by stat. 7 W. 3, c. 3, persons indicted of treason where corruption of blood is, are to have a copy of their indictment five days before their trial.